

Court No. - 21

Case :- WRIT - C No. - 15079 of 2023

Petitioner :- Sardar Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ajit Kumar

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The provisional notice dated 16/4/2022 required the petitioner to appear before the Assessing Officer on 26/4/2022. The notice consequently, does not provide 15 days' clear time to the petitioner to file objection as stipulated in Clause 6.8 of the U.P. Electricity Supply Code, 2005.

Let respondent No.2 file his personal affidavit and explain how the proceedings in pursuance of such a notice, which is ex facie illegal, could be sustained.

List as fresh on 22/5/2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery notice.

Order Date :- 3.5.2023

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(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 15079 of 2023

Petitioner :- Sardar Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ajit Kumar

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The petitioner has challenged the recovery proceedings initiated by the respondent-Electricity Department against him for recovery of a sum of Rs. 2,49,098/-.

2. On 3.5.2023, the following order was passed: -

"The provisional notice dated 16/4/2022 required the petitioner to appear before the Assessing Officer on 26/4/2022. The notice consequently, does not provide 15 days' clear time to the petitioner to file objection as stipulated in Clause 6.8 of the U.P. Electricity Supply Code, 2005.

Let respondent No.2 file his personal affidavit and explain how the proceedings in pursuance of such a notice, which is ex facie illegal, could be sustained.

List as fresh on 22/5/2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery notice."

3. On matter being taken up today, an affidavit of the Executive Engineer has been filed and it reveals that the notice of provisional assessment did not provide fifteen days time to the petitioner to file objections, as is mandatorily required under Clause 6.8 of the U.P. Electricity Supply Code, 2005 (for short "the Code"). Moreover, it seems that there was also no final assessment order in existence and straightway the impugned demand notice had been issued. Respondent no. 2 has tendered apology and has assured the Court that he would be careful in future.

4. Sri Alok Mishra, learned counsel appearing on behalf of the respondent-Electricity Department, states that the impugned recovery proceedings have been withdrawn. He states that a fresh notice has been issued to the petitioner on 12.5.2023 fixing 27.5.2023. He concedes that the requirement of fifteen working days notice to the assesseees to submit reply and appear for hearing, is not being fulfilled even by the said notice.

5. It seems that respondent no. 2 is not aware of the provisions of the Code and is acting mechanically, resulting in harassment of the assesseees.

6. We direct respondent no. 2 to appear personally and offer explanation how the notice now given by him fulfills the requirements of law and why this Court should not refer the matter to the higher officials for action being taken against him for repeatedly violating the provisions of law.

7. List as fresh on 30.5.2023.

8. Sri Alok Mishra, appearing on behalf of the respondent-Electricity Department, undertakes to communicate the instant order to respondent no. 2 for due compliance.

9. Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.5.2023

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Court No. - 21

Case :- WRIT - C No. - 15079 of 2023

Petitioner :- Sardar Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ajit Kumar

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The facts leading to filing of the instant petition is recorded in our order dated 22.05.2023, which is as follows :-

"1. The petitioner has challenged the recovery proceedings initiated by the respondent-Electricity Department against him for recovery of a sum of Rs. 2,49,098/-.

2. On 3.5.2023, the following order was passed: -

"The provisional notice dated 16/4/2022 required the petitioner to appear before the Assessing Officer on 26/4/2022. The notice consequently, does not provide 15 days' clear time to the petitioner to file objection as stipulated in Clause 6.8 of the U.P. Electricity Supply Code, 2005.

Let respondent No.2 file his personal affidavit and explain how the proceedings in pursuance of such a notice, which is ex facie illegal, could be sustained.

List as fresh on 22/5/2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery notice."

3. On matter being taken up today, an affidavit of the Executive Engineer has been filed and it reveals that the notice of provisional assessment did not provide fifteen days time to the petitioner to file objections, as is mandatorily required under Clause 6.8 of the U.P. Electricity Supply Code, 2005 (for short "the Code"). Moreover, it seems that there was also no final assessment order in existence and straightway the impugned demand notice had been issued. Respondent no. 2 has tendered apology and has assured the Court that he would be careful in future.

4. Sri Alok Mishra, learned counsel appearing on behalf of the respondent-Electricity Department, states that the impugned recovery proceedings have been withdrawn. He states that a fresh notice has been issued to the petitioner on 12.5.2023 fixing 27.5.2023. He concedes that the requirement of fifteen working days notice to the assesseees to submit reply and appear for hearing,

is not being fulfilled even by the said notice.

5. It seems that respondent no. 2 is not aware of the provisions of the Code and is acting mechanically, resulting in harassment of the assesseees.

6. We direct respondent no. 2 to appear personally and offer explanation how the notice now given by him fulfills the requirements of law and why this Court should not refer the matter to the higher officials for action being taken against him for repeatedly violating the provisions of law.

7. List as fresh on 30.5.2023.

8. Sri Alok Mishra, appearing on behalf of the respondent-Electricity Department, undertakes to communicate the instant order to respondent no. 2 for due compliance.

9. Interim order is extended till the next date of listing."

2. Respondent no. 2 is personally present in compliance of the above order. He has filed an affidavit in which, he admits that requisite fifteen working days clear notice was not issued to the petitioner as required under Clause 6.8 of the U.P. Electricity Supply Code, 2005. He also admits that on account of the said omission on his part, the petitioner has been put to unnecessary harassment. He has undertaken to compensate the petitioner by paying cost of Rs. 1,00,000/- only.

3. Shri Alok Mishra, learned counsel appearing for the said respondent states that the cost aforesaid will be borne by respondent no. 2 personally.

4. Shri Alok Mishra points out that a fresh notice had been issued to the petitioner on 29.05.2023 fixing 20th June, 2023 for filing objections. He states that respondent no. 2 will intimate the date for hearing of the objections to the petitioner and thereafter, finalise the proceedings.

5. Having regard to the facts noted above, we allow the instant petition and quash the recovery proceedings. It is left open to the respondents to proceed afresh strictly in accordance with the

procedure prescribed under the U.P. Electricity Supply Code, 2005.

6. Respondent no. 2 shall pay cost of Rs. 1,00,000/- to the petitioner as undertaken by him in his affidavit.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.5.2023

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